HEADNOTE

> *"1. Where an application for disclosure of written submissions and evidence by a member of the public is made pursuant to R 262.1 (b) RoP, the interests of that member of the public in obtaining access to the written submissions and evidence must be weighed against the interests referred to in Article 45 UPCA. These interests include the protection of confidential information and personal data ("the interest of one of the parties or other affected persons"), but are not limited to these. The general interest of justice and that of public order must also be taken into account. The general interest of justice includes the protection of the integrity of the proceedings.*
> *2. The protection of the integrity of the proceedings is of paramount importance in particular during pending proceedings, so that the parties can present their arguments and evidence, and the court can conduct the proceedings impartially and independently, without influence and interference from external parties in the public domain."*

COURT
Local Division in Vienna

PROCEEDINGS
Procedural order

PATENT
EP 2 643 717

COLOR-MIXING CONVERGENT OPTICAL SYSTEM

KEYWORDS
Public access to pleadings and evidence
Protection of the integrity of proceedings

Article 45 Public proceedings

SUMMARY
The Local Division in Vienna issued a procedural order. The patent at issue relates to a color-mixing convergent optical system. According to the headnotes of the decision, members of the public may seek access to written submissions and evidence under the Rules of Procedure. The court must balance their interests against those protected by Article 45 UPCA. This includes protecting confidential information and personal data of parties and affected persons. However, the balance extends beyond these narrow concerns to encompass broader principles. The general interest of justice and public order must also be considered in access decisions. Furthermore, protecting the integrity of proceedings forms a core component of the general interest in justice. This protection is especially critical during active litigation. Parties must present arguments and evidence without external interference. The court must remain impartial and independent throughout proceedings. Consequently, maintaining procedural integrity takes paramount importance to ensure fair resolution of disputes.